

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Giordano	Team: Team # 3	CCRB Case #: 201111062	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/20/2011 11:45 PM	Location of Incident: § 87(2)(b); in front of the 44th Precinct stationhouse		18 Mo. SOL 2/20/2013		Precinct: 44
Date/Time CV Reported Fri, 08/26/2011 12:40 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/26/2011 12:40 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Gregory Kennedy	26842	948364	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Kennedy	Force: PO Gregory Kennedy used physical force against § 87(2)(b) at § 87(2)(b) in the Bronx.	§ 87(2)(b)
B . POM Gregory Kennedy	Discourtesy: PO Gregory Kennedy spoke obscenely to § 87(2)(b) at § 87(2)(b) in the Bronx.	§ 87(2)(b)
C . An officer	Force: An officer struck § 87(2)(b) with a baton at § 87(2)(b) in the Bronx.	§ 87(2)(b)
D . An officer	Force: An officer struck § 87(2)(b) with a chair at § 87(2)(b) in the Bronx.	§ 87(2)(b)
E . An officer	Discourtesy: An officer spoke obscenely to § 87(2)(b) Unknown, § 87(2)(b) § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in the Bronx and in front of the 44th Precinct stationhouse.	§ 87(2)(b)

Case Summary

On August 26, 2011, § 87(2)(b) filed this complaint with the CCRB via its Call Processing System. On August 20, 2011, at approximately 11:45 PM, § 87(2)(b) was verbally arguing with his wife, § 87(2)(b) inside of their home, located at § 87(2)(b) in the Bronx. § 87(2)(b) believed neighbors called the police and two uniformed officers from the 44th Precinct arrived at the apartment. § 87(2)(b) identified one of the officers by name as PO Gregory Kennedy, assigned to Patrol Borough Bronx. § 87(2)(b) described the second officer, PO 1, as a black male, 6'1" tall, with a stocky build. He believed his name was "PO Waylan." The officers walked in and asked § 87(2)(b) if she was okay and if § 87(2)(b) had physically hurt her. She said it was just a verbal argument. § 87(2)(b) was sitting on a chair when one of the officers grabbed him and asked if § 87(2)(b) had anything on him. § 87(2)(b) recovering from a surgery on his broken leg, said he did not and that he was unable to get up due to a broken leg. PO Kennedy said, "So you are resisting arrest?" At that moment, PO Kennedy twisted § 87(2)(b)'s hand behind his back. PO Kennedy threatened to use pepper spray against § 87(2)(b) and started punching him in the ribs (**Allegation A**), while repeatedly calling § 87(2)(b) a "motherfucker" (**Allegation B**). PO 1 then hit § 87(2)(b)'s hand with a baton (**Allegation C**). After § 87(2)(b) was handcuffed, PO 1 used a metal chair to hit § 87(2)(b)'s fingers in an attempt to crush them (**Allegation D**). § 87(2)(b) was also hit with the baton three times in the head by one of the officers, but he could not see who had done it (**within Allegation C**). § 87(2)(b) was dragged down the stairs, out of the building and into the police van. At some point, two neighbors approached, § 87(2)(b) and § 87(2)(b) (last names and apartment numbers unknown). § 87(2)(b) wanted to take pictures and one of the officers § 87(2)(b) did not specify which) said they could do "whatever the fuck they wanted" (**Allegation E**). This same officer also told § 87(2)(b) "I'm going to fuck your mother" (**within Allegation E**). § 87(2)(b) was subsequently transported to the 44th Precinct. When they arrived, § 87(2)(b) wanted to exit the car on his own, and one of the officers replied, "Get the fuck out" (**within Allegation E**). He did not specify which officer said this. § 87(2)(b) was later taken to § 87(2)(b) and received multiple X-rays and CT scans. According to the complaint and arrest reports, § 87(2)(b) was charged § 87(2)(a) 160.50.

§ 87(2)(b) The arresting officer was PO Kennedy and the narrative noted that a nightstick/blunt instrument was used against § 87(2)(b) in order to restrain/control/remove. A search of CTS database indicated that no officer assigned to Patrol Borough Bronx or the 44th Precinct matched the last name "Waylan" or any variation thereof and the description provided by § 87(2)(b) § 87(2)(g).

§ 87(2)(b)

§ 87(2)(b)

On September 1, 2011, § 87(2)(b) was contacted via telephone and scheduled an interview for September 8, 2011. However, § 87(2)(b) failed to appear at the CCRB on the scheduled date and failed to call beforehand to cancel or reschedule. A missed appointment letter was mailed to § 87(2)(b)'s home address later that day. On September 19, 2011, § 87(2)(b) was contacted via telephone and he asked to be called back on the upcoming Wednesday to reschedule his interview. On September 21, 2011, an attempt was made to contact § 87(2)(b) via telephone. However, a voicemail message was left. Additionally, a please call letter was mailed to § 87(2)(b)'s home address on October 18, 2011. No correspondence was returned to the CCRB. On October 27, 2011, a search of the New York City Department of Correction website indicated that § 87(2)(b) is not currently incarcerated. As of the writing of this report, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b) provided no contact information or last names for § 87(2)(b) or § 87(2)(b). A search of NYC GovMap revealed that § 87(2)(b) is an apartment building § 87(2)(b).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted].

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date